

IN THE UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA
CASE NO. 09-61883-CIV-CANNON/HUNT

THINK VACUUMS, INC.,

Plaintiff,

vs.

MICHAEL MARCH, et al,

Defendants,

vs.

REGIONS BANK,

Garnishee.

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REPORT AND RECOMMENDATION

THIS CAUSE comes before the Court upon Think Vacuums, Inc.'s ("Plaintiff") Motion for Judgment on the Pleadings, filed on September 12, 2023. ECF No. 108. The Honorable Aileen M. Cannon, United States District Judge, referred this matter to the undersigned United States Magistrate Judge for a Report and Recommendation. ECF No. 118; see also 28 U.S.C.A. § 636(b); S.D. Fla. L.R., Mag. R. 1. Upon thorough review of the Motion, the entire case file, the applicable law, and being otherwise fully advised in the premises, the undersigned respectfully RECOMMENDS that Plaintiff's Motion be granted for the reasons outlined below.

On May 17, 2011, a Final Judgment was entered in favor of Plaintiff and against Defendant, Michael March, for damages in the amount of \$87,418.43. ECF No. 72. A Writ of Garnishment was served on Garnishee, Regions Bank, on July 14, 2023. ECF No. 102. On August 10, 2023, Garnishee served its amended answer, disclosing that it

was setting aside \$7,297.50 under the Writ. ECF No. 107. Plaintiff provided Notice to Defendant of these garnishment proceedings, ECF No. 104, and Notice to Third-Party disclosed on Garnishee's amended answer. ECF No. 105.

On September 19, 2023, this Court entered an Order requiring Michael March to file a response to Plaintiff's Motion for Judgment on the Pleadings on or before October 3, 2023. ECF No. 110. In that Order, the Court noted, "If Defendant fails to comply, the Court shall consider the merits of the motion for judgment on the pleadings without the benefit of a response, and such failure may be deemed sufficient cause to grant the motion by default." *Id.* at *1 (*citing* S.D. Fla. L.R. 7.1(c)). The Court ordered Plaintiff to "take all reasonable efforts to transmit a copy of the Court's Order Requiring Response to Defendant Michael March and the affected third party, Emily R. March." ECF No. 112. The Parties were then served both personally and by certified mail. ECF No. 117.

No response has been filed, nor has there been a motion to dissolve the Writ, and the time for doing so has expired. Florida Statute section 77.083 mandates the entry of judgment against the Garnishee for the amount of its liability as disclosed by the Garnishee's answer. Given such a mandate, as well as Defendant's lack of compliance, Plaintiff's Motion should be granted.

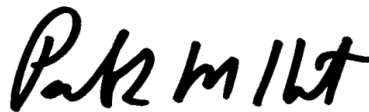
RECOMMENDATION

For the reasons set forth above, the undersigned hereby RECOMMENDS that Plaintiff's Motion for Judgment on the Pleadings, ECF No. 108, be GRANTED. Final Judgment in Garnishment should be entered in favor of Plaintiff against Garnishee, Regions Bank, and Plaintiff shall recover from Garnishee the sum of \$7,297.50. Garnishee should make the \$7,297.50 check payable to Plaintiff's counsel, Bullard Law

Trust Account, and mail the check to Cesery L. Bullard, Esquire, Bullard Law, 219 East Marks Street, Orlando, Florida 32803.

Within fourteen (14) days after being served with a copy of this Report and Recommendation, any party may serve and file written objections to any of the above findings and recommendations as provided by the Local Rules for this district. 28 U.S.C. § 636(b)(1); S.D. Fla. Mag. R. 4(b). The parties are hereby notified that a failure to timely object waives the right to challenge on appeal the district court's order based on unobjected-to factual and legal conclusions contained in this Report and Recommendation. 11th Cir. R. 3-1 (2016); see *Thomas v. Arn*, 474 U.S. 140 (1985).

DONE and SUBMITTED at Fort Lauderdale, Florida, this 9th day of November 2023.

A handwritten signature in black ink, appearing to read "Patrick M. Hunt", written over a horizontal line.

PATRICK M. HUNT
UNITED STATES MAGISTRATE JUDGE

Copies furnished to:
The Honorable Aileen M. Cannon
All Counsel of Record